

[\(https://mysocietyclub.com/\)](https://mysocietyclub.com/)

Model Bye-Laws of Cooperative Housing Society

XIX. REDRESSAL OF MEMBERS COMPLAINTS (Bye Law No 172, 173 and 174)

Bye Law No 172. Complaint application to be submitted to the Society ☞

Member/Members shall submit their complaint application to any of the Office bearers of the Society, in writing, giving thereby the details of the complaint.

Bye Law No 173. Committee's action on the Complaint Application ☞

After receipt of such, complaint application, the committee shall take decision thereof, in the immediate next Managing Committee meeting. Such decision shall be communicated to the concerned Member, within 15 days thereafter.

Bye Law No 174. If the action is not taken within stipulated period by the society then to whom the complaint to be made ☞

If the Member/Members are not satisfied by the decision of the Committee, or does not receive any communication from the committee within 15 days, the complainant Member may approach below mentioned Competent Authority.

Bye Law No 174(a) THE REGISTRAR

- i. Complaints to be made to the Registrar. Matters pertaining to following issues :-
- ii. Registration of Society on Misrepresentation
- iii. Non-issuance of the Share Certificates
- iv. Refusal of Membership
- v. Non registration of Nomination by the Society
- vi. Non Occupancy charges
- vii. Demand of excess premium for transfers
- viii. Non supply of the copies of record and documents
- ix. Tampering, suppression and destruction of the records of the Society
- x. Non acceptance of the cheques or any other correspondence by the committee

☎ Call us on +91-8291912007 (tel:+918291912007) to get best offer!



- xi. Non maintenance or incomplete maintenance of records and books of the Society
- xii. Non preparation of the annual accounts/reports, within the prescribed period
- xiii. Misappropriation/ Misapplication of the Funds of the Society
- xiv. Defaulter/Disqualified Member on the committee
- xv. Investment of Funds without prior permission of G.B.M.
- xvi. Reconciliation of Accounts
- xvii. Audit, Audit Rectification reports
- xviii. Non conducting of election before expiry of the term of the Committee as per law
- xix. Rejection of Nomination
- xx. Non convening of General Body meetings within prescribed period on or before 30th September of each year
- xxi. Non calling of Managing Committee meeting as prescribed in Bye-laws
- xxii. Resignation by the Committee
- xxiii. Any other like matters which falls within jurisdiction of the Registrar
- xxiv. Non filling of Returns and statements
- xxv. Classification as Active and Non-Active Members

Bye Law No 174(b) CO-OPERATIVE COURT

Disputes between the Members and/or the Members and Society, which falls under Section 91 of the MCS Act 1960 (<https://mysocietyclub.com/act/maharashtra-cooperative-society-act-1960/settlement-op-disputes#mcs-act-9-91>) such as:-

Disputes pertaining to:-

- i. Resolutions of the Managing Committee and General Body
- ii. The elections of the Managing Committee, except the Rejection of Nominations, as provided under section 152-A of the MCS Act 1960 (<https://mysocietyclub.com/act/maharashtra-cooperative-society-act-1960/appeals-review-revision#mcs-act-13-152a>)
- iii. Repairs, including Major Repairs, Internal Repairs, Leakages
- iv. Parking
- v. Allotment of Flats/Plots
- vi. Escalation of Construction Cost
- vii. Appointment of Developer/Contractor, Architect
- viii. Unequal water-supply
- ix. Excess recovery of dues from the Members
- x. Any other, like, disputes which fall within jurisdiction of the Co-operative Court

Bye Law No 174(c) CIVIL COURT

Disputes pertaining to :-

- i. Noncompliance of the terms and conditions of the Agreement, by and between the Builder/developer, (specific performance)
- ii. Substandard Constructions
- iii.  **Call us now on +91 8291912007 (tel:+918291912007) to get best offer!**
Conveyance Deed in favour of the Society,
- iv. Escalation of construction cost,
- v. Any other, like, disputes which fall within jurisdiction of the Civil Court.

Bye Law No 174(d) MUNICIPAL CORPORATION/LOCAL AUTHORITY

Matters pertaining to:-

- i. Unauthorized constructions/additions/alterations, made by builder/Member/ occupant of the flat
- ii. Inadequate Water supply to the Society and Members
- iii. Change of use by the Members/occupants
- iv. Building's structural problems
- v. Any other, like, matters which fall within jurisdiction of the Corporation/local authority for eg. Property tax, streetlights, garbage, and other civil amenities etc

Bye Law No 174(e) POLICE

Matters pertaining to:-

- i. Nuisance carried by the Unauthorised user of the Flat / Shop / Parking slot / Open space in the Society, by the Members, builder, occupants or any other persons,
- ii. Threatening / Assault by or to the Members of the Society and official body.
- iii. Any other like matters which fall within jurisdiction of the Police.

Bye Law No 174(f) GENERAL BODY MEETING

Matters pertaining to:-

- i. Non maintenance of the property of the Society by the Managing Committee
- ii. Non display of Board of the name of the Society
- iii. Levy of excess Fine, by the Managing Committee for act of the Member which is in violation of the Bye-laws
- iv. Not allowing the authenticated use of the available open spaces of the Society, by the Managing Committee
- v. Non Insuring the property of the Society, by the Managing Committee
- vi. Appointment of Architect
- vii. All other like matters which fall within jurisdiction of the General Body

Bye Law No 174(g) FEDERATION -DISTRICT / STATE

Matters pertaining to:-

- i. Not allowing of the entry to the Secretary of the Society, by the Member
- ii. Non acceptance of any communication by the Member/ Managing Committee
- iii. Convening Special General Body Meeting provided under the Bye-law no. 96 (<https://mysocietyclub.com/bye-laws/maharashtra-cooperative-housing-society-bye-laws/special-general-body-meetings>) and Managing Committee meeting provided under Bye-law no. 132. (<https://mysocietyclub.com/bye-laws/maharashtra-cooperative-housing-society-bye-laws/management-affairs#bye-law-no-132>) As per the directions given by concern Dist/Asst Registrars
- iv. All other like matters as per the Byelaws provision of the federation



Call us now on +91 8291912007 (tel:+918291912007) to get best offer!
 « Previous (<https://mysocietyclub.com/bye-laws/maharashtra-cooperative-housing-society-bye-laws/miscellaneous-matters>)

☰ Table of Content (<https://mysocietyclub.com/bye-laws/maharashtra-cooperative-housing-society-by-laws/table-of-content>)

Next » (<https://mysocietyclub.com/bye-laws/maharashtra-cooperative-housing-society-by-laws/housing-society-building-redevelopment>)

Search Housing Society Bye Law related term/topic/bye-law no from here!

bye law no 160(a)

Disclaimer: We have converted the Cooperative Housing Society bye-laws (<https://mysocietyclub.com/bye-laws/maharashtra-cooperative-housing-society-by-laws>), Maharashtra Cooperative Societies Act (<https://mysocietyclub.com/act/maharashtra-cooperative-society-act-1960>) and Maharashtra Cooperative Societies Rules (<https://mysocietyclub.com/society-rules/maharashtra-cooperative-society-rules-1961>) in web format so that the readers can quickly search the relevant section / bye-law / rule no. We are trying to update it as much as possible. In the event you notice any discrepancy do message us on our twitter account @mysocietyclub (<https://twitter.com/mysocietyclub>) with the page link.



MySocietyClub.com is a most comprehensive cloud-based society management and accounting software for Cooperative Housing Societies, Housing Society Federation and Resident or Apartment Welfare Association in India.

Download MySocietyClub App



(<https://goo.gl/JorrC3>)



 Call us now on +91 8291912007 (tel:+918291912007) to get best offer!
(<https://goo.gl/MmpyKT>)

Our Company Policy

- Privacy Policy >
- Terms & Conditions >
- Copy Right Policy >

Other Related Pages

- Connect >
- Our Team >

Knowledge Repository Related To Housing Society

- The Consumer Protection Act, 1986 & Rules, 1987 >
- Society Related Act/Bye-Laws >
- MCS ACT 1960 >
- MCS ACT 1960 (Web Based) >
- MCS Rules 1961 >
- MCS Rules 1961 (Web Based) >
- Mumbai Municipal Corps ACT >
- Go Green Initiative >
- Registrar Office Addresses >
- Society Maintenance Charges >
- Generate Free Maintenance Bill (Free) >
- Society Letter Formats >
- Deemed Conveyance Application >

Follow us to get Housing Society Updates

Follow @mysocietyclub

(<https://twitter.com/mysocietyclub?lang=en>)



Call us now on +91 8291912007 (tel:+918291912007) to get best offer!

2026 @ MySocietyClub. All Rights Reserved.



Call us now on +91 8291912007 (tel:+918291912007) to get best offer!